



My Health Records Regulations 2026

I, the Honourable Sam Mostyn AC, Governor-General of the Commonwealth of Australia, acting with the advice of the Federal Executive Council, make the following regulations.

Dated 19 March 2026

Sam Mostyn AC
Governor-General

By Her Excellency's Command

Mark Butler
Minister for Health and Ageing

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Part 1—Preliminary

1 Name

This instrument is the *My Health Records Regulations 2026*.

2 Commencement

- (1) Each provision of this instrument specified in column 1 of the table commences, or is taken to have commenced, in accordance with column 2 of the table. Any other statement in column 2 has effect according to its terms.

Commencement information		
Column 1	Column 2	Column 3
Provisions	Commencement	Date/Details
1. The whole of this instrument	1 April 2026.	1 April 2026

Note: This table relates only to the provisions of this instrument as originally made. It will not be amended to deal with any later amendments of this instrument.

- (2) Any information in column 3 of the table is not part of this instrument. Information may be inserted in this column, or information in it may be edited, in any published version of this instrument.

3 Authority

This instrument is made under the *My Health Records Act 2012*.

4 Schedules

Each instrument that is specified in a Schedule to this instrument is amended or repealed as set out in the applicable items in the Schedule concerned, and any other item in a Schedule to this instrument has effect according to its terms.

5 Definitions

Note: A number of expressions used in this instrument are defined in the Act, including the following:

- (a) healthcare provider organisation;
- (b) healthcare recipient;
- (c) individual healthcare provider.

In this instrument:

Act means the *My Health Records Act 2012*.

Australian Digital Health Agency means the Australian Digital Health Agency established by section 8 of the *Public Governance, Performance and Accountability (Establishing the Australian Digital Health Agency) Rule 2016*.

Section 6

Healthcare Identifiers Act means the *Healthcare Identifiers Act 2010*.

6 Nominated healthcare provider

For the purposes of subparagraph (c)(iii) of the definition of ***nominated healthcare provider*** in section 5 of the Act, the class is individuals who have been awarded a Certificate IV in Aboriginal and/or Torres Strait Islander Primary Health Care Practice.

7 Identifying information—individual healthcare provider

For the purposes of paragraph 9(1)(h) of the Act, the other information is the other information that is prescribed for the purposes of paragraph 7(1)(g) of the Healthcare Identifiers Act.

8 Identifying information—healthcare provider organisation

For the purposes of paragraph 9(2)(f) of the Act, the other information is the other information that is prescribed for the purposes of paragraph 7(2)(e) of the Healthcare Identifiers Act.

9 Identifying information—healthcare recipient

For the purposes of paragraph 9(3)(i) of the Act, the other information is the other information that is prescribed for the purposes of paragraph 7(3)(i) of the Healthcare Identifiers Act.

Part 2—System Operator

10 Identity of the System Operator

For the purposes of paragraph 14(1)(b) of the Act, the Australian Digital Health Agency is prescribed to be the System Operator.

Part 3—Registration

11 When a healthcare recipient is eligible for registration—other information

- (1) For the purposes of subparagraph 40(b)(v) of the Act, the other information in relation to a healthcare recipient is the following:
 - (a) whether the identity of the healthcare recipient has been verified;
 - (b) whether a healthcare identifier assigned to the healthcare recipient has been assigned provisionally (for example, because it has not been possible to verify the identity of the healthcare recipient).
- (2) For the purposes of subparagraph 4(b)(v) of Schedule 1 to the Act, the other information in relation to a healthcare recipient is the following:
 - (a) whether the identity of the healthcare recipient has been verified;
 - (b) whether a healthcare identifier assigned to the healthcare recipient has been assigned provisionally (for example, because it has not been possible to verify the identity of the healthcare recipient);
 - (c) whether the healthcare recipient is, or is likely to be, deceased;
 - (d) whether the death of the healthcare recipient has been verified.

12 Registration of healthcare recipient by the System Operator

For the purposes of subsection 41(4) of the Act and subclause 9(3) of Schedule 1 to the Act, the following State and Territory laws are prescribed:

- (a) section 56 of the *Public Health Act 2010* (NSW);
- (b) sections 55, 77 to 79, 105 to 107, 175 to 177, 220 to 222 and 238 to 240 of the *Public Health Act 2005* (Qld);
- (c) sections 110 and 111 of the *Public Health Act 1997* (ACT).

Part 4—Collection, use and disclosure of information

13 Prescribed information to be included in a My Health Record

- (1) This section is made for the purposes of:
 - (a) column 4 of item 9 of the table in subsection 58A(1) of the Act; and
 - (b) paragraph (a) of column 4 of item 9 of the table in subclause 8(1) of Schedule 1 to the Act.
- (2) The information is information that relates to the provision of healthcare to the healthcare recipient, other than information that relates to compensation or benefits, under any of the following Acts:
 - (a) the *Australian Participants in British Nuclear Tests and British Commonwealth Occupation Force (Treatment) Act 2006*;
 - (b) the *Military Rehabilitation and Compensation Act 2004*;
 - (c) the *Safety, Rehabilitation and Compensation (Defence-related Claims) Act 1988*;
 - (d) the *Treatment Benefits (Special Access) Act 2019*;
 - (e) the *Veterans' Entitlements Act 1986*.

14 Verifying identity of healthcare recipients etc.

- (1) For the purposes of:
 - (a) column 1 of item 10 of the table in subsection 58A(1) of the Act; and
 - (b) column 1 of item 10 of the table in subclause 8(1) of Schedule 1 to the Act;the Attorney-General's Department is prescribed.
- (2) For the purposes of:
 - (a) column 2 of item 10 of the table in subsection 58A(1) of the Act; and
 - (b) column 2 of item 10 of the table in subclause 8(1) of Schedule 1 to the Act;the System Operator is prescribed.

Schedule 1—Repeals

My Health Records Regulation 2012

1 The whole of the instrument

Repeal the instrument.